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Superannuation standard choice form

This form advises employers of the employee's choice of fund. Employers can use it to nominate their default super fund.

Last updated 4 July 2023

How to complete this form

Employees can use this form to advise employers of their choice of super fund and employers can use it to advise employees of their default super fund.

Employees can access and complete the form, by:

- Logging into ATO online services via **myGov**
  - from the **Employment** menu, select **New employment** and complete the **Super details** section
  - any existing super fund details will be pre-filled into the form
  - you will need the employer's Australian business number (ABN) and their default super fund's unique superannuation identifier (USI) to complete this form.

- Downloading the Superannuation standard choice form (NAT 13080 PDF 422KB)
  - enter the data electronically (a user may need to select **enable all features and JavaScript** in order for all data fields to work) or print the form out to complete.

- Their employer's employee commencement-enabled payroll software, if available.

Employers

Use this *Superannuation standard choice form* when:

- you hire a new employee who is eligible to choose a super fund
- an existing eligible employee requests one
- you can no longer contribute to an employee's nominated super fund or it is no longer a complying fund
- you change your default super fund and need to advise employees affected by this change.

If you're providing the *Superannuation standard choice form* to your employee, you must fill in the details of your default super fund before giving the form to your employee.

Note: The ATO *Superannuation standard choice form* was updated in April 2023. Previous versions of the form can still be used whilst industry transition to the latest version.

If your employee is going to complete the pre-filled form online via **myGov**, they will need:

- their employment type (for example, full-time, part-time, casual)
- your ABN
- the unique superannuation identifier (USI) of your default super fund.

If you're providing super choice via payroll software, ensure that you are capturing all the required details from the *Superannuation standard choice form* and recording the outcomes. Your software provider should follow the ATO data specifications for the *Superannuation standard choice form*, which outlines which fields in the form are mandatory to be replicated in software.

Note: Employers cannot provide employees with recommendations or advice about super or influence them to choose a particular fund. Only advisors licensed by the Australian Securities & Investments Commission (ASIC) can provide financial advice.

For information on how you can communicate to your employees about super choice without breaking the law, visit: ASIC - Communicating with employees about choice of superannuation fund: What you can and cannot do.

Do not send super choice forms to the ATO. Completed forms must be retained by employers for 5 years.

If your new employee does not choose a super fund, you may need to **request their stapled fund details** from us before making any super contributions.

For more information, see **Offer employees a choice of super fund** or **Paying super contributions**.

Employees

You can let your employer know your choice of super fund by completing this *Superannuation standard choice form*. You need to provide the information requested so your employer can make contributions to your **chosen super fund**.

Where your super guarantee should be paid is usually your choice.

If you start a new job and you do not provide your employer with your choice of super fund, your employer will need to check with us for an existing super account. We may provide your employer with a *stapled super fund* to pay your super into. A stapled super fund is an existing super account which is linked, or 'stapled', to an individual so that it follows them as they change jobs. This aims to reduce account fees by stopping new super accounts from being opened every time you start a new job.

We will notify you if your employer makes a stapled super fund request and include the fund details we have provided.

Super standard choice form instructions

Completing the form online

The pre-filled online form can be accessed through ATO online services via **myGov**.

Your existing super funds and account details will be displayed in the form if you choose to nominate one of your existing super funds for

employers to pay contributions to.

Employees completing the form in our online services will need their:

- employer's ABN
- employment type (for example, full time, part-time, casual)
- employer's default super fund details:
  - name
  - USI of the default super fund
  - ABN.

Employees will need to print the completed form summary and return this to their employer. Do not send the form to the ATO.

Completing the downloadable standard choice form

Employees

Correct information about your super fund is needed for your employer to pay super contributions. You must complete your details in **Section A** and then choose one additional section to complete out of the 3 options provided:

- An existing super fund (such as a retail or industry fund): **Section B**
- Your employer's default fund: **Section C**
- A self-managed super fund (SMSF): **Section D**

If you would like to open a new super fund account, you will need to do this with your chosen fund and then return to the *Superannuation standard choice form* when you have your new account details ready.

Your employer may choose not to accept this form if you do not provide:

- all the information requested on this form
- if completing Section B: a compliance letter from your chosen fund stating they are a complying fund and can accept contributions from your employer
- if completing Section D: a document confirming the SMSF is an ATO regulated super fund.

Note: Many super funds have a copy of a compliance letter on their website, for other funds you will need to contact them for this information.
You can find a copy of the compliance status for your SMSF at Super Fund Lookup.

Employees should know

- You can usually choose where you want your super paid.
- Your employer is not liable for the performance of the super fund you or they nominate.
- You should not seek financial advice from your employer unless they are licensed to provide it.
- You can request to change the fund your employer pays your super into at any time by filling out this form and returning it to your employer.
  - Your employer is only required to accept one choice of fund from you in a 12 month period, however they may choose to accept more.
  - When you return this form to your employer, they will have 2 months to action your request.
- If you started employment after 1 November 2021 and have not chosen a fund, your employer may pay into your **stapled super fund** or their nominated default account if we tell them you do not have a stapled super fund.
- If you quote your TFN to your employer for super purposes, they must provide it to the super fund.
- Your super is your money for retirement, you should check it regularly. It is important to keep track of your super – if you've ever changed your name, address or job, you may have lost super.
- Having more than one super account could mean you’re paying multiple fees and charges, which may reduce your retirement savings. You can consolidate multiple accounts using our ATO online services through **myGov**. Before you consolidate accounts, you may want to seek advice on fees this may incur or if you will lose any valuable insurance.

For more information, see **Keeping track of your super**.

Employers

Complete the 'Employer to complete' fields in **Section C** before giving this form to your employee. The default super fund you nominate must be authorised to offer a MySuper product. If you need to confirm your MySuper arrangements, contact your default super fund.

Retain a copy of any completed forms for 5 years. Do not send the form to us or to super funds.

Employers should know

If you haven't received a new employee's completed choice form or you have received the form, but details are missing or incorrect:

- You should contact your employee in the first instance to request that they complete their super choice form.
- If a super contribution is due and you haven't received their completed choice form, you may need to **request the employee's stapled super fund** from us and make the payment to the fund that we advise by the contribution due date, to avoid the super guarantee charge.

Once an employee has provided you with a completed *Superannuation standard choice* form, you have 2 months to make contribution payments to the fund the employee has nominated. Super contributions should either be made to:

- the employee's chosen fund
- you should make a stapled super fund request and make contributions to the fund that we advise.

For employees who commenced from 1 November 2021, you can only make contributions to your default fund if the ATO advises there is no stapled super fund. For earlier employees, you can pay their super contributions to their chosen fund, if there is one, or your default fund.

- You do not have to action an employee's choice of fund if they have chosen a fund in the previous 12 months, however you may choose to action their request.
- If an employee's chosen super fund cannot accept your contributions or it is no longer a complying fund, request another

choice of fund from your employee. If they don't choose a super fund, you may need to request a stapled super fund from us.

Super payment due dates

An employee's super fund must receive super contributions by the **quarterly due dates**.

You can make contributions more frequently than quarterly, for example fortnightly or monthly.

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Our commitment to you

We are committed to providing you with accurate, consistent and clear information to help you understand your rights and entitlements and meet your obligations.

If you follow our information and it turns out to be incorrect, or it is misleading and you make a mistake as a result, we will take that into account when determining what action, if any, we should take.

Some of the information on this website applies to a specific financial year. This is clearly marked. Make sure you have the information for the right year before making decisions based on that information.

If you feel that our information does not fully cover your circumstances, or you are unsure how it applies to you, contact us or seek professional advice.

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